

25LBCP00161 25LBCP00161

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-24

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Case Number: 25LBCP00161 Hearing Date: September 24, 2026 Dept: 414

25LBCP00161 In

Re: 1458 243rd Street Harbor City, CA 90710

Tuesday, August

12, 2025

[TENTATIVE] ORDER

CONTINUING

THE HEARING ON PETITION REGARDING CLAIMS OF SURPLUS FUNDS AFTER TRUSTEE'S SALE

California TD Specialists, ("TDS")

Petitioner, commenced this action to distribute surplus funds remaining from sale proceeds of the real property at issue totaling \$298,557.60. There are two written, conflicting claims for the funds.

On September 15, 2025, the Court granted TDS's motion to deposit funds and for an order discharging it. The Court ordered TDS to deposit \$298,557.60. (M.O. 9.15.25.)

Defendant, Walden Capital Group, LLC ("Walden") claims entitlement to excess funds as owner of record of the real property pursuant to a grant deed of April 30, 2024 and recorded on May 1, 2024. The deed reflects that Louis A. Bragg, Jr. ("Bragg") signed the grant deed conferring title to the property at 1458 243rd Street, Harbor City, CA 90170 to Walden.

Bragg filed a petition earlier in this action on September 12, 2025 claiming to be the first and sole owner of

the property located 1458 243rd Street, Harbor City. The petition submits an grant deed recorded October 16, 1985 showing and Josephine Legler granted the property to Bragg.

TDS, who deposited the finds, filed a response stating that the Court did not deduct its attorney's fees and costs of \$5,566.45 to which it is entitled under Civil Code § 2924k. TDS now requests this order.

The clerk gave notice of this hearing only to counsel for TDS and Walden, but not to Bragg, whose address is 418 Sangrena Drive, Pooler, GA 31322-1310 as reflected in a proof of service filed by TDS when it served its motion and order to deposit surplus funds. (P.O.S. 9.11.25.) Additionally, at the time Bragg filed his response to the petition to claim entitlement to the deposited funds, he was represented by counsel, Timothy T. Hsieh, Law Offices of Tim Hsieh, 16616 Kingsley Road, Edmond, OK 73012. (Pet. 9.12.25.) There is no record that Mr. Bragg signed a substitution replacing Mr. Hsieh as his counsel of record.

In any event, neither Mr. Hsieh nor Mr. Bragg were given notice of this hearing. Accordingly, the hearing is continued to January 8, 2027 . The clerk is ordered to serve all parties, including Mr. Hsieh and Mr. Bragg with notice of the continued hearing date and the minute order of April 3, 2026.